*BY ORDER OF THE*
*SECRETARY OF THE AIR FORCE*

*AIR FORCE MISSION DIRECTIVE 39*

*12 FEBRUARY 2024*

*AIR FORCE OFFICE OF SPECIAL INVESTIGATIONS (AFOSI)*

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This Directive states the mission, defines the command structure, and communicates responsibilities of the Department of the Air Force (DAF), Air Force Office of Special Investigations (AFOSI); explains the organizational relationship between AFOSI, the Secretary of the Air Force (SecAF), and the Secretary of the Air Force Office of the Inspector General (SAF/IG); and summarizes delegations of authority from SecAF to the Commander, AFOSI (AFOSI/CC), as set forth in Headquarters Air Force Mission Directive (HAFMD) 1-20, *Office of the Inspector General*. Refer recommended changes and questions about this publication to the office of primary responsibility using the DAF Form 847, *Recommendation for Change of Publication*; route the DAF Form 847 from field units through the appropriate functional chain of command.

## *SUMMARY OF CHANGES*

This directive has been substantially revised and must be completely reviewed. Major changes include the clarification of the organizational relationship between SecAF, SAF/IG, and AFOSI/CC, and a summary of several delegations of authority/assignments of responsibilities.

**1. Mission.** AFOSI's mission is to identify, exploit, investigate, disrupt, and neutralize criminal, terrorist, and intelligence threats across all domains, to protect the designated vital interests of the DAF, Department of Defense (DoD), and United States (US) Government.

1.1. Organization. AFOSI is a Field Operating Agency under SAF/IG.

1.2. AFOSI is a federal law enforcement (LE) and counterintelligence (CI) agency charged with conducting independent criminal and CI investigations and operations, specialized investigative activities, protective service operations, and integrated force protection for the DAF under the direction of AFOSI/CC.

1.3. AFOSI is a combat-ready military organization that provides LE and CI capability across all domains to DAF, as directed by the SecAF, to detect, deter, exploit, disrupt and neutralize threats.

1.4. AFOSI is the DAF's focal point for working with US and foreign nation LE, CI, and security services to identify, coordinate, and provide timely and accurate threat information in all environments.

**2. Command.** The Commander, AFOSI:

2.1. Exercises command authority over all AFOSI assigned personnel, facilities, property, and funds, and has the independent authority, subject to SecAF oversight through SAF/IG, within the DAF to initiate and conduct criminal investigations and CI activities in accordance with (IAW) Air Force Policy Directive (AFPD) 71-1, *Criminal Investigations and Counterintelligence*.

2.2. Will notify the SecAF in writing, informing SAF/IG, of any instance in which a commander, or any other DAF official, attempts to impede an investigation or limit the use of investigative techniques through the use of that commander's or official's authority.

2.3. Provides a combat-ready force that employs its LE and CI authorities to execute service-directed requirements and organizes, trains, and equips forces for presentation to combatant commands. AFOSI forces are service retained under AFOSI/CC.

2.4. Determines AFOSI command relationships based on situational specific requirements.

2.5. Considers the combatant commander's (CCDR) specific requirements during operational planning to ensure AFOSI's CI and LE authorities are understood and incorporated where appropriate to meet the CCDR's requirements.

2.6. Advises planners on AFOSI authorities and command relationships based on specific requirements when attaching forces to a combatant command.

2.7. Presents through the Global Force Management Process AFOSI personnel to a combatant command as assigned or allocated through the Global Force Management Process.

2.8. Retains administrative control for attached AFOSI forces placed under the operational control of a CCDR who will conduct activities consistent with the CCDR's authorities.

2.9. Exercises execution authority, as delegated directly from SecAF to the AFOSI/CC, relating to indexing subjects of DAF criminal justice investigations and prosecutions as delegated to SecAF pursuant to the Brady Handgun Violence Prevention Act, as amended by the National Instant Criminal Background Check System (NICS) Improvement Amendments Act of 2007, the Sex Offender Registration and Notification Act, as implemented through DoD Instruction (DoDI) 5525.20, *Registered Sex Offender (RSO) Management in DoD*, The US Code of Federal Regulations, Title 28, Part 20, as implemented through DoDI 5505.11, *Fingerprint Reporting Requirements* and DoDI 5505.07, *Titling and Indexing by DoD Law Enforcement Activities*.

**3. Responsibilities.** AFOSI:

3.1. Organizes, trains, equips, and assesses performance of all AFOSI field units, programs, and mission sets.

3.2. Exercises primary investigative authority over all matters falling within AFOSI's investigative jurisdiction within the DAF. LE and CI investigations will supersede any other DAF entity's investigation or inquiry.

3.3. As designated by the SecAF as the DAF's CI component, AFOSI is the DAF's sole agency for conducting CI investigations, collections, operations and analysis and production activities across all domains to include CI activities in cyberspace.

3.4. Is the lead for the DAF for locating and tracking adversaries threatening the US and allied personnel and resources through focused, proactive investigative operations across all domains outside of established foreign base perimeters IAW any applicable international agreement(s).

3.5. Coordinates and conducts neutralization of threats with appropriate US and allied forces, primarily through CI support to counterterrorism and force protection as well as counterthreat operations.

3.6. Identifies and investigates crimes within its investigative jurisdiction against and involving DAF equities, service members and affiliated government civilian and contractor personnel.

3.7. Provides CI support to installation commanders when the installation commander retains oversight of cleared contractor facilities IAW DoD Manual (DoDM) 5220.32, Volume 1, *National Industrial Security Program: Industrial Security Procedures for Government Activities* and Air Force Manual (AFMAN) 16-1406, Volume 2, *National Industrial Security Program: Industrial Security Procedures for Government Activities*.

3.8. Provides CI support to critical DoD research and development efforts IAW DoDI-O 5240.24, *Counterintelligence (CI) Activities Supporting Research, Development, and Acquisition (RDA)*.

3.9. In coordination with appropriate stakeholders, conducts LE cyber intrusion investigations and operations, integrating with joint capabilities where feasible, to identify, deceive, exploit, disrupt, and neutralize criminal, terrorist, and intelligence threats to the DAF, DoD, and the US Government.

3.10. In coordination with appropriate stakeholders, conduct cyber-related CI activities, integrating with joint capabilities where feasible, to identify, deceive, exploit, disrupt, and neutralize criminal, terrorist, and intelligence threats to the DAF, DoD, and the US Government.

3.11. Executes the DoD Counterdrug Strategy within the DAF by detecting, interdicting, suppressing, and monitoring the flow of illegal drugs into the US via DAF channels. Proactively detects and investigates the manufacturing, possession, and distribution of illegal drugs by DAF members and employees.

3.12. Is the DAF's single point of contact for protective service operations and intelligence protecting senior DAF members, DoD, US Government personnel, and foreign dignitaries.

3.13. Provides LE and CI support to Air Force Global Strike Command in support of DAF nuclear convoys.

3.14. Provides support to counter-insider threat program activities, IAW DoDI 5240.26, *Countering Espionage, International Terrorism, and the Counterintelligence (CI) Insider Threat*.

3.15. Synchronizes LE and CI operations with the DoD counter-insider threat program.

3.16. Executes independent special access program CI and LE investigations, operations, specialized investigative activities, compliance inspections, integrated technology protection, and program security responsibilities for all DAF special access programs, and non-DAF special access programs where the DAF has been assigned responsibility IAW AFPD 16-7, *Special Access Programs*, and Air Force Instruction (AFI) 16-701, *Management, Administration, and Oversight of Special Access Programs*.

3.17. Employs specialized investigative techniques, including but not limited to forensic sciences, digital forensics, polygraph, technical operations, physical surveillance, as well as specialized behavioral science assessments, tools, and techniques in conducting criminal and CI operations and investigations.

3.18. Executes the DAF Technical Surveillance Countermeasures program.

3.19. Functions as the DAF office of primary responsibility for polygraph and credibility assessment examinations.

3.20. Operates the Air Force Special Investigations Academy.

3.21. Maintains liaison and is the DAF single point of contact with federal, state, local and foreign nation LE, CI, and security agencies for matters falling within the AFOSI mission.

3.22. Provides administrative guidance and oversight of the DAF's indexing mission as delegated from SecAF to the Inspector General.

3.23. Executes criminal indexing for DAF's criminal justice information and criminal history record information as delegated from SecAF to AFOSI/CC.

3.24. Serves as the DAF's designated representative to the Criminal Justice Information Services Division Advisory Process, a federal advisory committee.

3.25. Collects, analyzes, and disseminates threat information across all domains including conducting open-source intelligence activities.

3.26. Conducts, collects, and analyzes identity activities in support of LE and CI investigations and operations.

3.27. Authorizes the consensual interception and seeking of judicial authorization for nonconsensual interception of wire, electronic, and oral communications for LE purposes.

3.28. SecAF has delegated to AFOSI/CC, in HAFMD 1-20, the authorities necessary to execute AFOSI's assigned missions.

STEPHEN L. DAVIS
Lieutenant General, USAF
The Inspector General

## Attachment 1

## GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

***References***

DoDI-O 5240.24, *Counterintelligence (CI) Activities Supporting Research, Development, and Acquisition (RDA)*, 8 June 2011

DoDI 5240.26, *Countering Espionage, International Terrorism, and the Counterintelligence (CI) Insider Threat*, 4 May 2012

DoDI 5505.07, *Titling and Indexing by DoD Law Enforcement Activities,* 8 August 2023

DoDI 5505.11, *Fingerprint Reporting Requirements,* 31 October 2019

DoDI 5525.20, *Registered Sex Offender (RSO) Management in DoD,* 14 November 2016

DoDM 5220.32 V1, *National Industrial Security Program: Industrial Security Procedures for Government Activities,* 1 August 2018

HAFMD 1-20, *Office of the Inspector General,* 5 January 2021

AFPD 16-7, *Special Access Programs*, 21 November 2017

AFPD 71-1, *Criminal Investigations and Counterintelligence*, 1 July 2019

AFI 16-701, *Management, Administration, and Oversight of Special Access Programs*, 18 February 2014

AFMAN 16-1406 V2, *National Industrial Security Program: Industrial Security Procedures for Government Activities*, 8 May 2020

***Prescribed Forms***

None

***Adopted Forms***

DAF Form 847, *Recommendation for Change of Publication*

***Abbreviations and Acronyms***

**AFI**—Air Force Instruction

**AFMAN**—Air Force Manual

**AFOSI**—Air Force Office of Special Investigations

**AFPD**—Air Force Policy Directive

**CCDR**—Combatant Commander

**CI**—Counterintelligence

**DAF**—Department of the Air Force

**DoD**—Department of Defense

**DoDI**—Department of Defense Instruction

**DoDM**—Department of Defense Manual

**HAFMD**—Headquarters Air Force Mission Directive

**IAW**—in accordance with

**LE**—Law Enforcement

**NICS**—National Instant Criminal Background Check System

**SecAF**—Secretary of the Air Force

**US**—United States

***Office Symbols***

**AFOSI/CC**—Commander, AFOSI

**SAF/IG**—Secretary of the Air Force Office of the Inspector General